

that they or the plaintiffs were not of the same household, at the time of such plea or suit commenced, the said record or other matter therein contained notwithstanding. By which Act the said invention to increase their jurisdiction [76 a] was taken away, which was but a declaration of the common law, as appears by the said book in 3 H. 6. Estoppel 18. & 10 H. 6. 13. *Vide* the said Acts of 30 E. 1. 1 E. 3. 1 R. 2. 5 E. 3. 10 E. 3. & 33 H. 8. cap. 12. And it was observed that every Act made concerning the Marshalsea, either restrains or explains their jurisdiction, and no Act adds any thing to it. As to judicial records, it appears in Pasch. 38 E. 3. in the Treasury *coram Rege*, that judgment given in the Marshalsea in an action of detinue, was reversed in the King's Bench, because they had no power to hold plea in such action; and therefore in the said statute of (d) 15 H. 6. in the preamble, the action of detinues is ill recited.

In the Book of Entries, 278. & 128. Conusans 7. & 32 H. 6. *Purchase's (e) case* cited in *Michelborn's case*, which see there to be adjudged in the point.

As to the nature of the action, it was resolved, that as well the common law, as the said Act of 28 E. 1. extended only to trespass *simpliciter*, and not to trespass *secundum quid*, *sc.* upon the case; for these are not actions of trespass without addition, no more than they can hold plea in an action of trespass upon trover or bailment, and conversion or the like, but only of trespass *simpliciter*, *sc. vi et arm'*, and also of such trespass in which any freehold cannot come in debate, as is aforesaid; and according to this resolution it was adjudged in the King's Bench, Hil. 5. Jac. Reg. Rot. 876. in (f) *Jeremy Gray's case*, that judgment given in the Court of the Marshalsea in an action upon the case upon trover and conversion was reversed, because the statute did not extend to trespass upon the case; and therewith also agrees (g) the said case of *Michelborn*. But although this action of *assumpsit* upon (h) general consideration, *quod indebitatus existit*, be against the law, as appears in *Slade's case*, in the Fourth Part of my Reports; yet if they had jurisdiction of the cause, their proceeding therein was not void, but voidable by writ of error. But that shall be spoke to more at large in the second point, which now follows.

2dly. It was resolved, that the action well lies against the defendants: and a difference was taken when a Court has (a) jurisdiction of the cause, and proceeds *inverso ordine* or erroneously, there the party who sues, or the officer or minister of the Court who executes the precept or process of the Court, no action lies against them. But (b) when the Court has not jurisdiction of the cause, there the whole proceeding is *coram non iudice*, and actions will lie against them without any regard of the precept or process (g), and therefore the said rule cited by the other side, *sc. (a) Qui jussu*

(d) 15 H. 6. cap. 1.

(e) 6 Co. 10. Cro. El. 502. 1 Bulst. 208, 209.

(f) 1 Bulst. 207, 208. Godb. 284.

(g) 6 Co. 20. b. Cro. El. 502. 4 Inst. 130. 1 Bulst. 208. 210. 213.

(h) *Postea* 77. a. and notes, *ib.*

(a) Plow. 13. a. 9 Co. 68. a. Raymond 129. 1 Mod. Rep. 173. Hard. 481. Cart. 19. 2 Bulst. 64. Cro. Car. 395. March. 8.

(b) Hard. 478. 481. Godb. 387. Cart. 19. Cro. Jac. 314. 2 Bulst. 64. Lutw. 1560, 1561. Salk. 201, 202.

(a) *Ant.* 70 b.

(g) In *Orby v. Hales*, 1 L. Raym. 3. it was held that if the sheriff discharge a prisoner by virtue of an order made by justices at their quarter sessions, they having no power to make such order, he shall not be liable for an escape. But this case, which is contrary to former cases, has been expressly overruled. *Brown v. Compton*, 8 T. R. 424. and *vid. Colston v. Ross*, Cro. Eliz. 893. Anon. 1 Salk. 273. The distinction here taken by Coke has been recognized as good law at least as far as respects the protection given to the Court and its officers. *Groenvelt v. Burwell*, 1 L. Raym. 471. *Parsons v. Loyd*, 3 Wils. 345. *Perkins v. Proctor*, 2 Wils. 384. And accordingly where the defendant, a vicar general of the bishop, had excommunicated the plaintiff for not taking administration of an intestate's effects, and the citation, by which the plaintiff was cited, was void, and the proceedings thereupon had been set aside, and there was no malice, the subject matter of the judgment being a thing within the